

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED; AND OOCL  
(EUROPE) LIMITED, *Respondents*.

**DOCKET NO. 25-31**

Served: June 1, 2026

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**ORDER OF:** Linda S. Harris CROVELLA, *Administrative Law Judge*.

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**SECOND AMENDED SCHEDULING ORDER**

On May 29, 2026, the parties filed a Joint Motion to Extend Deadlines,<sup>1</sup> requesting a 45-day extension of the remaining deadlines set forth in the February 4, 2026, Scheduling Order. As good cause for a 45-day extension, the parties state that they have worked collaboratively to produce documents to each other on a rolling basis, and they now have a substantial number of depositions to schedule.

The parties jointly moved for an extension of the initial schedule on April 9, 2026, and the motion was granted by order dated April 10, 2026. At that time, the parties stated that Complainant made productions on March 23 and 30, 2026 and expected to make a third production by April 17, 2026, and Respondent completed their initial production of documents on March 10, 2026. Based on the representations made in the first joint motion to extend the schedule, the Third Joint Status Report (“Third JSR”), and the second joint motion to extend, it appears that Complainant completed production on April 20, 2026, the date by which substantial completion of document production was set.<sup>2</sup> See, First Joint Motion to Extend 2-4; Third JSR 1-3; Second Joint Motion to Extend 3-4. The parties have not specified how many pages of

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<sup>1</sup>The parties are reminded to use a numerical indicator for the same or similarly named motions; this is the second joint motion filed by the parties to extend the discovery and briefing deadlines.

<sup>2</sup> In the Third JSR, both parties complain of prejudice based on the document production—Complainant in terms of the discrepancy in the number of documents produced (143,530 by it versus 12,038 by Respondent), and Respondent because it provided its documents well before Complainant. There is no motion before me other than the joint motion to extend the scheduling order, but I note that Complainant produced the majority of its documents (94,670) by March 30, 2026, and it completed the remainder of its production within the schedule set forth in the original Scheduling Order and carried over to the Amended Scheduling Order.

documents were produced by Complainant, but Respondent produced 28,774 pages, and the production by both parties was completed 6 weeks ago.

The parties anticipate scheduling 17 employee and former employee witnesses, in addition to an unspecified number of corporate representatives. The parties also mention depositions of “experts, and any depositions from key non-party witnesses from third-party logistics providers...that may be necessary.” Second Joint Motion to Extend at 3. Expert witness depositions are provided for in the schedule. *See* Amended Scheduling Order. The schedule does not allow separate time for non-party depositions and those must be conducted within the time allotted for fact witness depositions. The parties are again reminded that the number of depositions is limited, absent leave, by Rule 203. 46 C.F.R. § 502.143(a)(2)(i). Additionally, the parties should be finalizing the deposition schedule, and in particular, those witnesses who are located outside the country and may require use of the Hague Convention on Service Abroad.

Based on the number of depositions the parties anticipate conducting, good cause has been established for the 45-day extension, but the parties are cautioned that further extension requests are unlikely to be granted.

Accordingly, the parties are **ORDERED** to follow the schedule below (briefing schedule is modified from proposed extension due to October 12, 2026, federal holiday and to adjust for an incomplete date proposed for Complainant’s reply):

|                    |                                                                                                                |
|--------------------|----------------------------------------------------------------------------------------------------------------|
| August 6, 2026     | Complete depositions of fact witnesses                                                                         |
| August 6, 2026     | Last day to serve interrogatories, requests for admission, and RFPs                                            |
| August 20, 2026    | Disclosure of initial expert reports, if any                                                                   |
| September 3, 2026  | Disclosure of rebuttal expert reports, if any                                                                  |
| September 15, 2026 | Complete expert depositions                                                                                    |
| September 15, 2026 | Close of discovery                                                                                             |
| October 13, 2026   | Complainant’s initial brief, proposed findings of fact, appendix                                               |
| November 10, 2026  | Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix |
| November 24, 2026  | Complainant’s reply and responses to proposed findings of fact                                                 |

  
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Linda S. Harris Crovella  
Administrative Law Judge